

is now matter of daily occurrence in settlements by way of trust (*b*).

4. **Contingent remainders.** — At law, except in executory devises, a freehold contingent limitation must be supported by a freehold particular estate, and *if the contingent limitation do not vest at the determination of the particular estate, it is extinguished (*a*), but to trusts the rule is held not to be applicable, or, as the doctrine is expressed, the legal estate in the trustees is sufficient to support all the equitable interests (*b*).

5. **Limitations of chattels.** — At law a chattel real can by *executory devise* only, and not by *deed*, and a chattel personal can neither by *will* nor by *deed*, be limited to one person for life, with a limitation over to another; but in trusts a chattel interest, whether real or personal, can be subjected to any number of limitations, provided there be no perpetuity (*c*).

6. **Trusts for a church or chapel.** — If a testator before the Statute of Mortmain (9 G. 2. c. 36) had devised to one that served the cure of a church, and to all that should serve the cure after him, all the tithes, profits, &c.; here, as the successive curates were not a body corporate, they were incapable of taking the legal estate, but equity carried the intention into effect by way of trust, and decreed the devisee or heir to hold in trust for the persons intended to be benefited (*d*). So on the erection of a chapel, the endowment cannot, without an act of parliament, be transmitted at law to the successive preachers and their congregations, but the ordinary mode of accomplishing the object is by vesting the legal estate of the property in trustees (with a power of renewing their number on vacancies by death, &c.), upon trust to per-

(*b*) See *Duke of Norfolk's case*, 3 Ch. Ca. 35.

[(*a*) But see now 40 & 41 Vict. c. 33.]

(*b*) *Chapman v. Blissett*, Cas. t. Talb. 145; *Hopkins v. Hopkins*, ib. 43. ["The principle is, that as the legal estate in the trustees fulfils all feudal necessities, there being always an estate of freehold in existing persons who can render the services to

the lord, there is no reason why the limitations in remainder of the equitable interest should not take effect according to the intention of the testator." *Per M. R. Abbiss v. Burney*, 17 Ch. D. 211, 229.]

(*c*) See Lord Nottingham's observations in *Duke of Norfolk's case*, 3 Ch. Ca. 32.

(*d*) *Anon. case*, 2 Vent. 349.